

**CITY OF AMERICAN CANYON’S DEMURRER TO AMENDED PETITION FOR WRIT OF
MANDATE; COMPLAINT FOR DAMAGES; REQUEST FOR DECLARATORY AND
INJUNCTIVE RELIEF**

TENTATIVE RULING: The demurrer is SUSTAINED IN PART and OVERRULED IN PART. The demurrer is SUSTAINED WITH LEAVE TO AMEND as to the First, Second, Third, and Fourth Causes of Action on the ground that the FAP fails to allege compliance with, or excuse from, the Government Claims Act’s claim presentation requirement. The demurrer is OVERRULED in all other respects. Petitioners are granted 10 days’ leave to amend.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant and Respondent City of American Canyon (“City”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f),¹ to Petitioners American Canyon I, LLC (“AC1”) and Napa Valley Ruins and Gardens, LLC’s (“Napa Ruins”) (collectively, “Petitioners”) Verified Amended Petition for Writ of Mandate; Complaint for Damages; Request for Declaratory and Injunctive Relief, filed April 3, 2026 (“FAP”).

The FAP asserts 12 causes of action, nine of which are against City as follows: (1) First Cause of Action for Breach of Contract; (2) Second Cause of Action for Breach of Good Faith & Fair Dealing; (3) Third Cause of Action for Writ of Mandate – Abuse of Discretion (§§ 1085 and/or 1094.5); (4) Fourth Cause of Action for Violation of Mandatory Duties (Gov. Code § 815.6); (5) Fifth Cause of Action for Violation of Procedural Due Process (42 USC § 1983); (6) Sixth Cause of Action for Violation of Equal Protection Clause (42 USC § 1983); (7) Tenth Cause of Action for Inverse Condemnation; (8) Eleventh Cause of Action for Declaratory Relief; and (9) Twelfth Cause of Action for Injunctive Relief.

Petitioners first argue that the City failed to properly meet and confer because, during meet and confer communications, it challenged five causes of action, but its Demurrer challenges all nine. (Opp., 9:18-10:1; Declaration of Carly O. Alameda (“Alameda Decl.”), ¶¶ 4-5, Exh. A; see also § 430.41, subd. (a)(1) [“As part of the meet and confer process, the demurring party shall identify *all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.*”] [Emphasis added.].) The City does not dispute this in Reply. Petitioners do not request any relief on this ground, nor is the Court

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

inclined to issue any relief related thereto. (See *Olson v. Hornbrook Comm. Servs. Dist.* (2019) 33 Cal.App.5th 502, 515 [“Any determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.”].) That said, the Court reminds counsel that the purpose of meet and confer efforts prior to motion practice is to informally resolve disputes in good faith, which purpose is undermined where a moving party fails to raise all disputes during the meet and confer process.

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action” and/or “[t]he pleading is uncertain.” (§ 430.10, subds. (e)-(f).) A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).)

C. DISCUSSION

1. Demurrer on the Ground Petitioners Failed to Allege Compliance with the Government Claims Act

In general, no suit for damages may be maintained against a governmental entity unless a formal claim has been presented to such entity, and has been rejected (or is deemed rejected by the passage of time). (Gov. Code, §§ 912.4, 945.4; see *Munoz v. State of Cal.* (1995) 33 Cal.App.4th 1767, 1776.) Failure to plead facts showing or excusing compliance with the government claims act’s (“GCA”) presentation requirement subjects a complaint to a general demurrer. (*State v. Sup. Ct. (Bodde)* (2004) 32 Cal.4th 1234, 1239.) Failure to comply with the GCA bars the claim against the public entity, but it is not a jurisdictional defect. (*Id.*, at 1239, fn. 7.)

The parties do not dispute that the City is a public entity protected under the GCA. (Gov. Code, §§ 811.2, 905.)

The City is unclear as to which causes of action it claims fail based on Petitioners’ failure to allege compliance with the GCA. According to the Notice of Demurrer, it is the First, Second, Tenth, and Eleventh Causes of Action. (Notice of Demurrer, p. 2.) According to the Demurrer, it is the entire FAP. (Demurrer, p. 3.) Finally, the Memorandum only discusses it generally as to

Petitioners’ “damage claims” and specifically as to the First and Second causes of action. (Mem., 10:23-24; see also *id.*, 12:14-15 [First Cause of Action], 13:23-24 [Second Cause of Action].)

In Opposition, Petitioners raise this discrepancy and concedes that the First, Second, Third, and Fourth causes of action are subject to the GCA, as those are the only claims for money damages. (See Opp., 12:3-6, fn. 4.) The City implicitly concedes Petitioners’ representation, as it does not address or dispute it in Reply. As such, the Court construes the City’s demurrer for non-compliance with the GCA as applying only to the First, Second, Third, and Fourth Causes of Action.

The universe of allegations in the FAP regarding compliance with the GCA is the single allegation that “Petitioners and ... City ... entered into a tolling agreement on April 29, 2025, which agreement acknowledged the parties’ compliance with the Government Claims Act should either party need to file a legal action like the one contemplated herein.” (FAP, ¶ 16, Exh. A.) The relevant portion of the tolling agreement, attached to the FAC as Exhibit A, states: “In the event either Party elects to terminate this Agreement through a Termination Notice and proceed with a legal action against the other Party, *each Party hereby agrees that all noticing requirements have already been met, including any notice and meet and confer requirements under the Agreement, as well as the Government Claims Act.* (FAP, ¶ 16, Exh. A, p. 2, ¶ 3. *Italics added.*)

Petitioners recognize that the tolling agreement is only between AC1 and the City. However, Petitioners argue that the FAP alleges that Napa Ruins is AC1’s successor in interest to all of its rights and obligations with regard to a specified portion of the Property (see FAP ¶¶ 4-5), and therefore Napa Ruins can rely on the tolling agreement to the same extent as AC1, under the tolling agreement’s provision stating “[t]his Agreement shall inure to the benefit of and be binding upon the predecessors, affiliates, successors and assigns of the parties.” (*Id.*, ¶ 16, Exh. A, p. 4, ¶ 12.) The City does not dispute or address this in Reply.

The Court agrees with Petitioners that the language in Paragraph 3 of the tolling agreement appears to recognize that the City has agreed that Petitioners met the noticing requirements under the GCA. However, this language does not allege that Petitioners, in fact, complied with the GCA. Rather, Petitioners appear to be relying on the tolling agreement as a basis for a waiver or estoppel ground to argue that Petitioners are excused from the GCA’s claim presentation requirement. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 445 [“[A] public entity may be estopped from asserting the limitations of the claims statute where its agents or employees have prevented or deterred the filing of a timely claim by some affirmative act. Estoppel most commonly results from misleading statements about the need for or advisability of a claim; actual fraud or the intent to mislead is not essential.”].) However, such theory of compliance with the GCA is not clearly alleged in the FAP.

The Court acknowledges Petitioners’ argument in Opposition that the FAP’s allegations—specifically regarding delivering a Notice of Default to the City, meeting and conferring with the City, and entering into mediation with the City as to the specific issues which are now raised in the FAP—constitute compliance with the GCA separate from the tolling agreement. (Opp, 11:22-12:2, citing FAP, ¶¶ 79-82.) However, this theory of compliance is not

clearly alleged in the FAP and therefore the Court does not find it satisfies with the GCA pleading requirement.

Based on the foregoing, the demurrer on the ground that the First, Second, Third, and Fourth Causes of Action fail for Petitioners' failure to allege compliance with, or excuse from, the GCA's claim presentation requirement is SUSTAINED WITH LEAVE TO AMEND.

Although the foregoing ruling renders it unnecessary for the Court to consider the City's additional arguments in support of its demurrer as to the First, Second, Third, and Fourth Causes of Action, the Court elects to consider them in the interest of efficiency.

2. Demurrer on Uncertainty Ground

Although the City's Notice of Demurrer and Demurrer are premised, in part, on the ground of uncertainty as to the Third, Fifth, Sixth, and Eleventh Causes of Action, the City's accompanying points and authorities fail to specify in what particulars the Third or Eleventh Causes of Action are uncertain, by failing to address this ground at all with respect to those claims. (Mem., 13:28-15:24, 19:5-20:3.) Generally, failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty. (§ 430.60.) Thus, at the outset, the Court overrules the City's demurrer that the Third and Eleventh Causes of Action are uncertain.

With respect to the Fifth Cause of Action, the Court does not find it "fatally vague" for lacking in allegations of "what process was due, why notice was not enough, and how the lack of notice deprived it of a fair hearing" (see Mem., 17:4-5, 21-22), where the FAP clearly alleges that the City itself discharged, and further allowed the Newell Family to discharge, stormwater into Napa Ruins' private property without providing Napa Ruins' a formal hearing or opportunity to object, thereby causing harm. (See FAP, ¶¶ 53-61, 119-125.) This is sufficiently certain.

With respect to the Sixth Cause of Action, the City's brief uncertainty argument appears to be alternative to, and duplicative of, the City's argument that the FAP fails to state facts to constitute a cause of action for Equal Protection violations. (See Mem., 18:10-12.) That ground is discussed below. Moreover, a demurrer for uncertainty is disfavored and may only be sustained where the allegations render the complaint so incomprehensible that a defendant cannot reasonably respond. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) The Court finds the FAP, including the Third, Fifth, Sixth, and Eleventh Causes of Action, to be entirely comprehensible such that the City can reasonably respond.

Based on the foregoing, the demurrer on the ground that the Third, Fifth, Sixth, and Eleventh Causes of Action are uncertain is OVERRULED.

3. Demurrer to First Cause of Action for Breach of Contract

The City further demurs to the First Cause of Action on the ground that it fails to state facts sufficient to constitute a cause of action because the Development Agreement is not attached.

As an initial matter, the City references section 430.10, subdivision (g) in support of this argument. This subdivision was not included in the City's Notice of Demurrer or Demurrer and is therefore improper. (See *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125 [holding a court generally cannot grant different relief, or relief on different grounds, than that stated in the notice of motion].) Nevertheless, the Court finds that Petitioners have complied with the requirement that a breach of contract action must either set out verbatim the terms in the body of the complaint or attach a copy of the written instrument. (See *Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459.)

Petitioners confirm in Opposition that this was an inadvertent error. The FAP clearly references Exhibit C as attaching the Development Agreement. (FAP, ¶ 40.) Upon realizing the error, Petitioners filed a Notice of Errata to include the correct Exhibit C to the FAP. Even without the Development Agreement attached, the Court finds that the FAP sufficiently alleges a breach of contract action, as the relevant portions of the Development Agreement are quoted in the FAP.

Thus, the demurrer on the ground that the First Cause of Action fails for Petitioners' failure to attach the Development Agreement is OVERRULED.

4. Demurrer to Second Cause of Action for Breach of Good Faith & Fair Dealing

The City further demurs to the Second Cause of Action on the ground that it does not state facts sufficient to constitute a cause of action separate from the First Cause of Action for Breach of Contract. The City relies on authority pertaining to implied covenants of good faith and fair dealing. "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as *no additional claim is actually stated.*" (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395. Italics in original.)

Petitioners argue that the City's authority, pertaining to an *implied* covenant of the good faith and fair dealing provision, is inapplicable because the Second Cause of Action alleges breach of an *express* covenant of good faith and fair dealing.

The Court finds that, while the First and Second Causes of Action both seek damages related to violations of the same contract (the Development Agreement), they rely on different alleged acts and primarily assert violations of different provisions of the Development Agreement. (See FAP, ¶¶ 87, 95.) Although the First Cause of Action references the good faith and fair dealing provision of the Development Agreement (Section 2.04), the gravamen of the alleged violations is separate from those constituting the Second Cause of Action. Given that

both causes of action allege breaches of the same contract—albeit separate provisions—they arguably could be contained within the same cause of action. However, the fact that the allegations are included under a label for a separate cause of action does not render the allegations under Second Cause of Action superfluous, as they are relevant to Petitioners’ claim for breach of the good faith and fair dealing provision of the Development Agreement (Section 2.04). (See *Jaffe v. Carroll* (1973) 35 Cal.App.3d 53, 57 [“It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings [or labels therein].”].)

Based on the foregoing, the demurrer on the ground the Second Cause of Action is superfluous to the First Cause of Action is OVERRULED.

5. Demurrer to Third Cause of Action for Writ of Mandate

The City further demurs to the Third Cause of Action on the grounds that it fails to state a claim under either section 1085 or section 1094.5.

“A writ of mandate will lie to ‘compel the performance of an act which the law specifically enjoins, as a duty resulting from an office, trust, or station’ (Code Civ. Proc., § 1085) ‘upon the verified petition of the party beneficially interested,’ in cases ‘where there is not a plain, speedy, and adequate remedy, in the ordinary course of law.’ (Code Civ. Proc., § 1086.)” (*Larson v. City of Redondo Beach* (1972) 27 Cal.App.3d 332, 336.) This remedy is commonly called “traditional mandamus.” (*Gong v. City of Fremont* (1967) 250 Cal.App.2d 567, 571-72.) “[The traditional mandamus] is limited to the enforcement of purely ministerial duties and will not lie to control discretion within the area lawfully entrusted to an administrative body. [Citations.]” (*Id.*, at 572.) “Two basic requirements are essential to the issuance of the writ: (1) A clear, present and usually ministerial duty upon the part of the respondent [citations]; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty [citation].” (*Larson, supra*, 27 Cal.App.3d at 336.)

A writ of mandate is also available “to inquire into the validity of some kinds of quasi-judicial actions of administrative agencies (commonly called ‘administrative mandamus,’ Code Civ. Proc. § 1094.5).” (*Gong, supra*, 250 Cal.App.2d at 571-72.) “Administrative action is subject to review under section 1094.5 only as to certain aspects specified in subsection (b): want or excess of jurisdiction; whether there was a fair trial; and whether there was prejudicial abuse of discretion. Abuse of discretion is shown by failure of the administrative agency to proceed as required by law, failure of the findings to support the decision, or failure of the evidence to support the findings.” (*Id.* at 573.)

“[I]t is settled that the sufficiency of a petition in a mandamus proceeding can be tested by demurrer.” (*Larson, supra*, 27 Cal.App.3d at 337.)

Here, Petitioners seek a writ to compel the City to (a) collect and remit reimbursement from the Newell Family consistent with Watson Ranch Specific Plan (“WRSP”) section 9.4.1.5;

and (b) cease and remediate unauthorized stormwater routing into Quarry Lake. (FAP, ¶¶ 110-111, Prayer (p. 35), ¶ 1; see also FAP, Exh. B [WRSP].)

Petitioners allege that the City’s mandatory duty as to (a) is imposed by the WRSP, the Development Agreement or Government Code section 65456. Specifically, the WRSP states: “[T]he City, after adopting the WRSP, shall determine the total WRSP Costs, the City shall determine the amount the Newell Family Property owes toward those total WRSP Costs, and *the City shall impose a requirement that the Newell Family Property pay its portion of the WRSP Costs before it is approved for any development.*” (FAP, ¶ 29.) The FAP further alleges that the City has approved the Newell Family Property for the development of a subdivision without imposing a requirement that the Newell Family Property pay its portion of the WRSP Costs. (FAP ¶¶ 37-39.)

In its Memorandum and Reply, the City argues—without acknowledging Petitioners’ arguments as to the “shall” language in the WRSP—that its duty under the WRSP is discretionary. (See Mem., 14:15.) The City fails to resolve the tension between its assertion of discretion with the mandatory language in the WRSP. To the extent the City is contending its decisions with respect to the development of the Newell Family Property are discretionary, that is a different issue than Petitioners are raising in the FAP. Petitioners do not challenge the City’s approval for developments on the Newell Family Property; rather, Petitioners contend that the City has not complied with its duty under the WRSP to require the Newell Family Property to pay its portion of the WRSP Costs as a condition of approving developments. To the extent the City is contending the timing and amount of the costs that the Newell Family Property should pay is discretionary (see Reply, 6:2-4), the timing mandated by the WRSP is “before” any development is approved for the Newell Family Property, which time the FAP alleges has passed. Moreover, the method for calculating the amount of the Newell Family Property’s WRSP Costs is outlined in the WRSP. (See FAP, ¶ 29.) Based on the foregoing, the Court finds that the FAP properly alleges a clear, present and usually ministerial duty upon the part of the City, and a clear, present and beneficial right in Petitioners’ to the performance of that duty.

A general demurrer does not lie to only part of a cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948.) Thus, the Court’s above finding renders it unnecessary for the Court to reach the second part of the Third Cause of Action for a writ to compel the City to cease and remediate unauthorized stormwater routing into Quarry Lake. Based on the foregoing, the demurrer to the Third Cause of Action is OVERRULED.

6. Demurrer to Fourth Cause of Action for Violation of Mandatory Duties (Gov. Code § 815.6)

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, § 815.6.)

The City further demurs to the Fourth Cause of Action on the ground that it fails to set forth a mandatory duty imposed on the City for which relief may be granted and therefore fails to state a viable cause of action. Specifically, the City argues that Petitioners have failed to allege an “enactment ... designed to protect against the risk of a particular kind of injury.”

Petitioners argue that the FAP sufficiently alleges this because it alleges that the WRSP mandated the City to require the Newell Family to reimburse Petitioners for permitting fees prior to approving developments for the Newell Family, and the City failed to comply therewith. (Opp., 15:11-15, citing FAC ¶¶ 25-39, 113-118 and FAC, Exh. B § 9.4.1.5.) Petitioners argue that the WRSP is an enactment for purposes of section 815.6. (Opp., 15:19-27., citing Gov. Code, §§ 810.6, 65450.) Petitioners show that the City also considers the WRSP an enactment. (Opp., 15:17-19, citing Mem., at 10 [“A Specific Plan is a legislative enactment...”].)

The Court finds that the FAP sufficiently alleges facts to state a cause of action under Government Code 815.6. The WRSP, attached as Exhibit B to the FAP, expressly states that it was adopted by Ordinance 2018-08 on October 16, 2018, and amended by Ordinances 2019-06 and 2023.07. This supports that it is an enactment as that term is defined under Government Code section 810.6, which includes an ordinance and regulation. The Court further finds that the WRSP expressly states a desire to protect Petitioners regarding reimbursement of costs. (See FAP, ¶ 29, citing § 9.4.1.5 of the WRSP [expressly setting forth Petitioners and the Newell Family’s responsibility for costs and recognizing that Petitioners have “already paid for the bulk (if not all) of the WRSP Costs. Therefore, the City, after adopting the WRSP, shall determine the total WRSP Costs, the City shall determine the amount the Newell Family Property owes toward those total WRSP Costs, and the City shall impose a requirement that the Newell Family Property pay its portion of the WRSP Costs before it is approved for any development.”].)

Based on the foregoing, the demurrer to the Fifth Cause of Action is OVERRULED.

7. Demurrer to Sixth Cause of Action for Violation of Equal Protection Clause

The City demurs to the Sixth Cause of Action on the grounds that it fails to meet the pleading requirements for a class of one claim, specifically failing to allege facts satisfying the second and third elements for such a claim.

“To succeed on a class of one equal protection claim, a plaintiff must establish that (1) the plaintiff was treated differently from other similarly situated persons, (2) the difference in treatment was intentional, and (3) there was no rational basis for the difference in treatment.” (*Bottini v. City of San Diego* (2018) 27 Cal.App.5th 281, 318. Internal quotations omitted.)

In Opposition, Petitioners argue its FAP alleges facts satisfying all elements. The Court agrees and finds that the Sixth Cause of Action sufficiently alleged for pleading purposes. (FAP, ¶¶ 126-131.)

Thus, the demurrer on the ground that the Sixth Cause of Action fails to state a claim is OVERRULED.

8. Demurrer to Tenth Cause of Action for Inverse Condemnation

The City demurs to the Tenth Cause of Action on the ground that it fails to set forth a public project for which the City would have liability and therefore fails to state a viable cause of action. The City argues that “third-party stormwater runoff” does not qualify as “a public improvement deliberately designed and constructed.” The City further argues that the FAP fails to allege how any public project poses an unreasonable risk of harm to the property.

Petitioners do not dispute that an inverse condemnation claim requires a public project as deliberately designed and constructed, which presents inherent risks of damage to private property. Petitioners contend that the FAP satisfies this requirement because it alleges that both the City and the Newell Family (with the City’s permission) have discharged contaminated stormwater runoff into Napa Ruin’s privately owned Quarry Lake *through City-owned drainage systems designed to run into that lake, and which have caused damage to that lake*. (Opp., 17:23-26 (emphasis added), citing FAP, ¶¶ 53-61, 147-155.)

The Court agrees with Petitioners that the identified allegations of the FAP satisfy the requirements for an inverse condemnation claim which the City asserts are missing. Thus, the demurrer on the ground that the Tenth Cause of Action fails to state a viable cause of action is **OVERRULED**.

9. Demurrer to Eleventh Cause of Action for Declaratory Relief

The City further demurs to the Eleventh Cause of Action on the grounds that it (1) seeks an advisory opinion, and presents no actual controversy, (2) is duplicative of the First Cause of Action, and therefore, fails to demonstrate why Petitioners’ legal remedy is insufficient requiring equitable relief, and (3) requests improper relief because a court cannot tell the City how to exercise its discretionary decision-making power.

Even assuming *arguendo* the Eleventh Cause of Action seeks a declaration of rights concerning the same terms of the contract at issue in the First Cause of Action, this method of pleading is permissible where, as here, the declaratory relief sought would also govern the future conduct of the parties. (See FAP, ¶ 157-160; see *Osseous Technologies of America, Inc. v. DiscoveryOrther Partners LLC* (2010) 191 Cal.App.4th 357, 371-73 [analyzing line of cases and recognizing trial court’s authority to provide declaratory relief in a dispute involving an alleged breach of contract if the relief sought would also govern the future conduct of the parties].) Moreover, the Court finds that the FAP alleges an actual controversy and does not merely seek an advisory opinion. Finally, given that the demurrer as to Petitioners’ other substantive claims has been overruled, the Court does not find that the declaratory relief cause of action clearly seeks a declaration of rights to which Petitioners are not legally entitled.

Based on the foregoing, the demurrer to the Eleventh Cause of Action is **OVERRULED**.

10. Demurrer to Twelfth Cause of Action for Injunctive Relief

The City demurs to the Twelfth Cause of Action on the grounds that an injunction (1) is a remedy, not a cause of action, and (2) requires an underlying viable claim which has not been pled.

Given that the demurrer as to Petitioners' other substantive claims authorizing injunctive relief has been overruled (or sustained with leave to amend), the Court does not find that the injunctive relief cause of action fails for the failure to have a viable underlying claim.

While the title "Twelfth Cause of Action for Injunctive Relief" is arguably superfluous because an injunction is a remedy and not a cause of action, sustaining a demurrer on that ground would elevate form over substance. The Prayer properly requests injunctive relief, and the facts pled in Paragraphs 161-165 of the Twelfth Cause of Action support that request. Sustaining a demurrer simply because the facts supporting injunctive relief were alleged under the heading Twelfth Cause of Action rather than among the general allegations is a futile act.

Based on the foregoing, the demurrer to the Twelfth Cause of Action is OVERRULED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angel Alfaro

23PR000065

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review–Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit Petitioners to address the following issues:

1. There is no Proof of Service on paternal grandparents Francisco Walle and Nancy Notaro in the Court's file, as mandated by Probate Code Sections 1821, subdivision (b), and 1822, subdivision (b)(2).